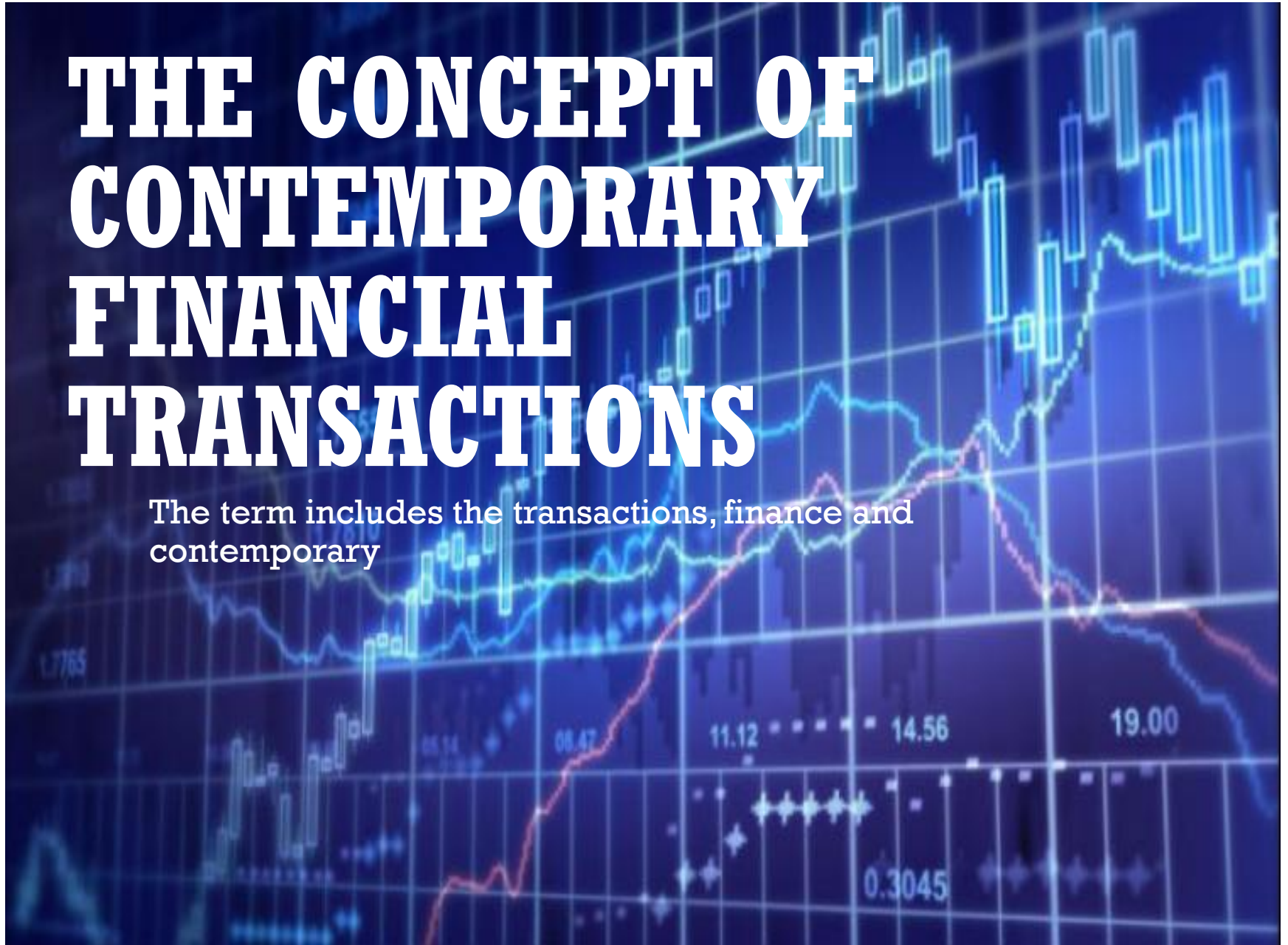


THE CONCEPT OF CONTEMPORARY FINANCIAL TRANSACTIONS

The term includes the transactions, finance and contemporary



TRANSACTIONS

The lawful rules which regulate the financial dealing carried out between people. These comprise :

- The bargains: sale and leasing.
- Donations: grants, will and endowments.
- Dropping/Isqatat : such as abolishing a debt.
- Documentation/Touthee qat : mortgage, bail (warranty) and draft (transfer debt).

Finance

- Anything has material value among people, and its use is allowed in case of facilitation and choice
-

Modernity

The recent or modern age.

DEFINITION OF CONTEMPORARY FINANCIAL TRANSACTIONS

What is considered a contemporary financial transaction?:

- **Cases that emerged in the in the contemporary age,**
- **The cases that changed in their rules as a result of progress**
- **The cases that changed in the circumstances and the cases that bear new names,**
- **Cases that consist of many old forms.**



RELEVANT TERMS

- Jurisprudents use several terms to express new legal cases that emerged in modern age, like:
- **The emerged cases**
- **Incidences/Waqeaat**
- **(Fatwa).**

CHARACTERISTICS OF TRANSACTIONS IN ISLAMIC JURISPRUDENCE

The transactions' jurisprudence is based on **general bases and principles.**

The original ruling of all transactions **is permissibility.**

The jurisprudence of transactions is **based on logical reasoning and what benefits the people.**

The fiqh of transactions is **both flexible and constant. (how so?)**



For a scholar to give fatwa he must give time and effort and fulfill these conditions:

1. Knowledge

- the Holy Quran.

-the Prophetic (Sunna)

-the issues of consensus and controversy in jurisprudence.

-the fundamentals jurisprudence and the Arabic language.

2- Should be self-jurisprudent, i.e. to have a jurisprudence talent that helps him to understand the jurisprudence' s issues

3-Should be honest in his saying, just in his religion and to avoid the major sins and insist on leaving the minor sins.



Should be
aware of the
Shari'a
intentments(Th
e purposes of
the law),

To be able to
elicit the rules
from the
enlisted
adjudications
in the studious
jurisprudence.

Familiar with
the reality and
the
surrounding
circumstances



The steps which are taken by the scholar to issue a new ruling

1-Praying to Allah, asking him to inspire his mind and provide him with right foresight

2-Understanding the core of this current case precisely.

3-Collating this newly emerged case to the legitimate texts

4-Collating this case to the sayings of the companions

5-Searching for the ruling to this newly emerged case in the discretions of the four jurisprudential Imams

6-Searching in the new sources of information and recent scholars.

7-If the scholar still could not reach any legitimate rule for this newly merged case; he should refrain from ruling (Fatwa)

